

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 9, 2026
8:30 a.m./1:30 p.m.

4. SAMUEL MATTILA V. KRISTIANNA HEIMAN

PFL20210271

On March 10, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders and attorney's fees. He filed a declaration of Rebecca Esty-Burke concurrently therewith. Both documents were served by mail on March 30th however the Notice of Tentative Ruling was not served, nor was the blank FL-320.

On March 27, 2026, Respondent filed an RFO also seeking custody and visitation orders. There is no Proof of Service for this RFO.

The parties filed a Stipulation Re: Vacation and Continuance of Court Date on April 15th thereby continuing the hearing date on the RFO to the present date.

Petitioner filed and served a Responsive Declaration to Request for Order on May 18th.

The parties attended Child Custody Recommending Counseling (CCRC) on April 13, 2026. They were unable to reach any agreements therefore, a report with recommendations was prepared on May 26th. It was mailed to the parties on May 27th.

Petitioner filed his RFO requesting an order permitting him to take the minor child on vacation. This issue was resolved by the stipulation. However, he further requests the current out-of-state travel order be modified to allow for such travel upon 30 days' written notice to the other party along with a full itinerary including travel dates, destination, lodging information and contact details with no agreement required. He requests \$1,500 for the time and expense of filing the RFO.

According to Petitioner, he was not served with Respondent's RFO until after the CCRC appointment and, as stated previously, there is no Proof of Service for this RFO. Accordingly, Respondent's RFO is dropped from calendar due to lack of proper service. The court is not adopting the recommendations set forth in the CCRC report as the CCRC appointment was set as a result of Petitioner's RFO, not Respondent's, and yet the report did not address the issues raised in Petitioner's RFO. Furthermore, Petitioner was not served with Respondent's RFO until after the CCRC appointment and therefore, he was not given proper notice to prepare and address the issues raised prior to the CCRC appointment.

Regarding the request to modify the out-of-state travel order, the request is granted. The court does find it to be in the best interest of the minor to modify the existing vacation order as follows. Each party may take a vacation with the minor up to two weeks every year.

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The vacationing parent shall notify the other parent in writing of the vacation plans a minimum of 30 days in advance and provide the other parent with an itinerary including the dates of leaving and returning, destinations, flight information, lodging information, and telephone number for emergency purposes. Vacations may take place outside the state of California. The non-vacationing parent need not give his or her approval for the out-of-state vacation so long as the vacationing parent has complied with the foregoing notice requirements.

All prior orders not in conflict with this order remain in full force and effect.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #4: RESPONDENT'S RFO IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE.

REGARDING THE REQUEST TO MODIFY THE OUT-OF-STATE TRAVEL ORDER, THE REQUEST IS GRANTED. THE COURT DOES FIND IT TO BE IN THE BEST INTEREST OF THE MINOR TO MODIFY THE EXISTING VACATION ORDER AS FOLLOWS. EACH PARTY MAY TAKE A VACATION WITH THE MINOR UP TO TWO WEEKS EVERY YEAR. THE VACATIONING PARENT SHALL NOTIFY THE OTHER PARENT IN WRITING OF THE VACATION PLANS A MINIMUM OF 30 DAYS IN ADVANCE AND PROVIDE THE OTHER PARENT WITH AN ITINERARY INCLUDING THE DATES OF LEAVING AND RETURNING, DESTINATIONS, FLIGHT INFORMATION, LODGING INFORMATION, AND TELEPHONE NUMBER FOR EMERGENCY PURPOSES. VACATIONS MAY TAKE PLACE OUTSIDE THE STATE OF CALIFORNIA. THE NON-VACATIONING PARENT NEED NOT GIVE HIS OR HER APPROVAL FOR THE OUT-OF-STATE VACATION SO LONG AS THE VACATIONING PARENT HAS COMPLIED WITH THE FOREGOING NOTICE REQUIREMENTS.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

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NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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5. SANDRA MCGAGIN V. BRUCE MCGAGIN

25FL0718

On April 14, 2026, Petitioner filed a Request for Order (RFO) seeking spousal support and an order to sell the marital residence. She filed her Income and Expense Declaration concurrently therewith. Both documents were served on April 17th; however, the Notice of Tentative Ruling was not served.

On June 23rd, the parties filed a Stipulation and Order Regarding Sale of Marital Residence and Payment of Expenses.

Respondent filed and served his Responsive Declaration to Request for Order and his Income and Expense Declaration on June 25, 2026.

Petitioner is requesting guideline spousal support in the amount of \$3,026 pursuant to the Xspouse report attached as Exhibit A to her RFO. She further asks that the marital home be listed for sale within 30 days and both parties be ordered to comply with the recommendations of the jointly selected real estate agent regarding all aspects of the sale, including listing the property and evaluating and accepting offers. She asks that all net proceeds from the sale be deposited into her attorney's trust account pending further order of the court or written agreement of the parties.

Respondent asks the court to deviate from guideline based on his hardship. He also asks the court to preclude Petitioner from seeking any reimbursement from Respondent's CalPERS monthly pension during the time he is ordered to pay spousal support based on the CalPERS income and an order reserving claims for reimbursements/credits for Respondent's post-separation payment of expenses on behalf of Petitioner and/or towards joint obligations.

First and foremost, the court finds the June 23rd stipulation of the parties resolves Petitioner's requests regarding the sale of the marital residence and the proceeds thereof. As such, the court declines to rule on those requests as they are now moot.

Regarding the issue of support, generally speaking, a married person has a duty to support his or her spouse. Cal. Fam. Code § 4300. The intent is to ensure that each party, upon separation, is able to maintain the marital standard of living. See Cal. Fam. Code § 4330(a). The court maintains broad discretion in determining whether a support award is warranted and if so, the amount and duration thereof. In re Marriage of McLain, 7 Cal. App. 5th 262, 269 (2017). While the factors listed in Family Code section 4320 may be considered